EPR 113

LAWYER & CLIENT RELATIONSHIP

MEANING

This is a professional & fiduciary relationship established when a lawyer agrees to represent a client. It is based on trust, loyalty, confidentiality & honesty.

NATURE OF LAWYER-CLIENT RELATIONSHIP

- Fiduciary
- Contractual
- Confidential
- Professional

- **Fiduciary:** One in which a person (lawyer) is entrusted to act in the best interest of another person (client).

The lawyer owes the client duties of:

- Loyalty
- Good faith
- Honesty
- Full disclosure
- Avoidance of conflict of interest

LEGAL IMPLICATIONS

Any breach of fiduciary duty may result in:

- Disciplinary Actions
- Professional Sanction
- Civil liability / suit

- **Contractual Relationship:** It's contractual because it's created through an agreement between the lawyer & the client. The contract may be expressed through (oral or written) or it may be implied from the conduct of both parties.

LEGAL IMPLICATIONS

Either party may terminate the contract according to the terms of engagement & applicable professional documentation.

- **Confidential Relationship:**

The Lawyer-Client Relationship is confidential because all info disclosed by the client must be kept secret. Its duty continues after it has ended. The counsel can't share info without the client consents.

Examples of Confidential Info:

- Personal details of the client
- Business transactions
- Financial record
- Litigation strategies
- Admissions made by the client

- **Professional Relationship:** It's professional because it's governed by rules, ethics & standards established by the legal profession.

DUTIES OF LAWYER TO CLIENT

- Duty of Confidentiality
- Duty of Competence
- Duty of Loyalty
- Duty of Honest representation
- Duty to obey the law

DUTIES OF A CLIENT TO LAWYER

- Payment of legal fees
- Honesty in disclosure
- Cooperation with counsel
- Respect for professional advice

IMPORTANCE OF PRIVILEGED COMMUNICATION

- It encourages honesty
- Legal representation
- Builds trust

WAYS THROUGH WHICH THE TERMINATION OF LEGAL REPRESENTATION/RELATIONSHIP OCCURS

- Withdrawal
- Dismissal by client
- Death of client

- Completion of case
- Mutual agreement

ADV 115

FORMS OF ACTIVISM

1. Awareness Activism
- Educating others about an issue
2. Legal Activism
3. Digital Activism
4. Community Activism

TOOLS USED IN ACTIVISM

- Public Speaking
- Writing & Publication
- Meetings & Negotiation
- Press Statement
- Memoranda
- Social Media